

Opinion of the Court

deeds, and depositions, Buller addressed what we would later call issue preclusion. Lifting language from an earlier publication, H. Bathurst, *The Theory of Evidence* 39 (1761), Buller wrote that a final judgment was “conclusive Evidence” “against all the World” of the factual determinations underlying the judgment. Buller, *Nisi Prius*, at 245. And it is on this basis that Buller (again lifting from Bathurst) said that even someone acquitted of a crime in Spain “might,” upon indictment in England, “plead the Acquittal in *Spain* in Bar.” *Ibid.*

This endorsement of the preclusive effect of a foreign judgment in civil litigation (which even today is not uniformly accepted in this country¹²) provides no direct support for Gamble since his prior judgment was one of conviction, not acquittal. (There is, after all, a major difference between the preclusive effect of a prior acquittal and that of a prior conviction: Only the first would make a subsequent prosecu-

¹² Compare Restatement (Fourth) of Foreign Relations Law of the United States § 481 (2017) (With a few specified exceptions, “a final, conclusive, and enforceable judgment of a court of a foreign state granting or denying recovery of a sum of money, or determining a legal controversy, is entitled to recognition by courts in the United States”) and Restatement (Second) of Conflict of Laws § 98, Comment *b*, p. 298 (1969) (“In most respects,” judgments rendered in a foreign nation satisfying specified criteria “will be accorded the same degree of recognition to which sister State judgments are entitled”), with, *e.g.*, *Derr v. Swarek*, 766 F. 3d 430, 437 (CA5 2014) (recognition of foreign judgments is not required but is a matter of comity); *Diorinou v. Mezitis*, 237 F. 3d 133, 142–143 (CA2 2001) (same); *id.*, at 139–140 (“It is well-established that United States courts are not *obliged* to recognize judgments rendered by a foreign state, but may *choose* to give res judicata effect to foreign judgments on the basis of comity” (emphasis in original; internal quotation marks omitted)); *MacArthur v. San Juan County*, 497 F. 3d 1057, 1067 (CA10 2007) (“Comity is not an inexorable command . . . and a request for recognition of a foreign judgment may be rebuffed on any number of grounds”); *Guinness PLC v. Ward*, 955 F. 2d 875, 883 (CA4 1992) (“The effect to be given foreign judgments has therefore historically been determined by more flexible principles of comity”).